

NEWSLETTER N. 509 of September 11, 2023

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Wild Telemarketing: The Privacy Authority Sanctions
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The Privacy Authority continues its action against illegal telemarketing. The Authority has sanctioned Comparafacile and Tiscali, respectively for €40,000 and €100,000. Comparafacile must also delete all illegally acquired personal data.

The first measure originates from a complaint by a citizen who, despite being registered with the Public Opposition Register (RPO), continued to receive promotional calls even after requesting the deletion of his data.

The Authority found that Comparafacile, after purchasing personal data from a foreign company, contacted individuals to ask if they were interested in receiving commercial offers and, if so, sent them an SMS with a link to a landing page where they could provide consent. The first phone contact occurred without verifying the consent of the individuals (possibly obtained from the data supplier) and without providing them with any information, the viewing of which was conditional on accessing the landing page, thus on expressing interest in the services.

In the measure, the Authority explained that the use of a mechanism that forces the user to declare interest in a company's services to obtain the information is not legitimate and that, consequently, uninformed consent cannot be considered a valid basis for Comparafacile's marketing activities.

The Authority did not accept the company's justifications that claimed to act as a data processor and not as a controller. However, the activities carried out by Comparafacile, from selecting the supplier from whom to purchase the lists to defining the purpose (promoting its services), to choosing the contact channel, make it the data controller. And it is the controller who is responsible for both the obligations set forth by the regulations and the liability for the alleged violations.

The measure against Tiscali falls within the scope of the Authority's inspection activities.

The investigation revealed that the company provided incomplete information, failing to indicate any time frame for data retention, particularly for marketing

and profiling purposes. Although Tiscali claimed to have operated in compliance with the information provided, the Authority highlighted that even an inadequate fulfillment of the information obligation is subject to sanction, regardless of whether it has caused any harm to the individual.

Moreover, Tiscali had engaged in so-called soft spam, sending - within four months - SMS to over 160,000 customers who had not expressed their consent to receive promotional communications.

The company has illegitimately interpreted the regulations that allow sending advertising communications without the consent of the individual only via email and exclusively under certain conditions: such as, for example, concerning products and/or services provided by the controller and not by third parties, and that such benefits are similar to those already purchased by the individual.

Work: Yes to Employee Access to Investigative Report

The worker has the right to access his personal data, including that contained in the report of the investigative agency appointed by the company to collect information about him.

This was established by the Privacy Authority, which found the illegality of the data processing carried out by a public utility service company, sanctioning it with a fine of €10,000.

The Authority intervened following a complaint from an employee who was unable to obtain a complete response to his requests for access to his personal data, made after receiving a disciplinary notice that contained specific references to extracurricular activities, which was followed by dismissal.

In response to the various requests from the individual, the company ultimately stated that the requests were "too vague" and that it was necessary to indicate "in detail" the information to which access was being requested.

Furthermore, only nearly a year after the first request and on the occasion of the company's appearance in the appeal against the dismissal, the employee became aware of the existence and content of the investigative report from which specific references included in the disciplinary notice had been drawn.

****Disciplinary.****

In the decision, the Authority established that the company had the obligation to provide the employee with all the data collected in the investigative report, including those that had not been transferred to the disciplinary notice (photographs, a GPS survey, descriptions of places, people, and situations), in accordance with Articles 12 and 15 of the Regulation. Information that, in theory, could also have been useful for the exercise of the right of defense.

Furthermore, for its part, the company, in the responses provided to the employee, did not mention the

investigative report nor justified in any way the denial of access to the data contained in this document, thereby also violating the principle of fairness.

The Authority, therefore, recalling that the data controller is required to provide access to the personal data of the data subject in a complete and up-to-date manner—also indicating the source of the data if not collected directly by the data controller from the data subject—imposed a fine of 10,000 euros on the company.

****Video Surveillance: Waste, the Authority fines a Municipality and two companies****

Users not adequately informed about the installed systems

A fine of 45,000 euros was imposed by the Privacy Authority on a Sicilian Municipality for having installed several cameras for monitoring the separate waste collection in violation of the regulations that protect personal data.

To combat the widespread phenomenon of waste abandonment, the Municipality had commissioned two companies, which were also fined by the Authority, for the purchase, installation, and maintenance of fixed cameras, as well as for the collection and analysis of footage related to violations.

The Authority's intervention follows reports from a citizen who complained about receiving several fines for incorrectly disposing of unsorted waste. The checks for the violation reportedly occurred more than a month after the recording of the footage, which was carried out without citizens being adequately informed about the presence of the cameras and the processing of data.

In fact, the Municipality had placed a sign directly on the bin, which was not easily visible and, moreover, lacked the necessary information. The Municipality also had not identified the data retention periods and had not appointed, prior to the start of processing, the two aforementioned companies as data processors, as required by privacy regulations. Thus, the companies also operated unlawfully, which is why both were fined by the Authority, one for 10,000 euros for never having been appointed as data processor, and the other for 5,000 euros for being appointed late.

The processing of personal data through video surveillance systems by public entities is generally permitted if necessary to fulfill a legal obligation, and waste management falls within the institutional activities entrusted to local authorities.

Even in the presence of a condition of lawfulness, the data controller, the Authority reiterated, is in any case required to respect the principles regarding data protection, including those of lawfulness, fairness, and transparency. In particular, it is necessary to adopt appropriate measures to provide the data subject with all the information required by the GDPR in a concise, transparent, intelligible, and easily accessible form.

For the purposes of applying the sanctions, the Authority took into account the fact that the processing potentially concerned the data of the residents of the Municipality (about 53,000 data subjects) and non-residents (the number of whom is not quantifiable). Conversely, the Authority considered the non-willful behavior of the Municipality and the companies, as well as the absence of previous violations against them.

****Fake Site, the Privacy Authority orders Google to remove the web address****

Created by anonymous individuals using the name of an entrepreneur and data found online

The Privacy Authority ordered Google to remove from search results a URL linked to a fake website, the address of which was formed by the name and surname of an Italian entrepreneur and contained statements harmful to personal and professional reputation.

The site had been created by anonymous individuals using the personal data of the interested party found online, including a photo and an email address whose name suggested affiliation with a criminal organization. The site also contained links to public documents related to alleged judicial matters.

In the complaint sent to the Authority, the interested party, an entrepreneur with activities also abroad, requested the de-indexing of the site associated with his name and surname and specified that he had never been convicted nor involved in judicial proceedings, disputes, or investigations related to criminality or organized crime, as instead reported on the site. The entrepreneur also noted that he had already obtained from Google, following a ruling from a non-European judicial authority, the de-indexing of the URL, which, however, remained visible in Europe.

Google, in fact, to which the interested party had turned to obtain a global de-indexing, had declared

the complaint inadmissible, considering that it was based on the protection of reputation, honor, and image and not on the protection of personal data, which could therefore be more appropriately classified as a defamation offense rather than a violation of the right to be forgotten.

In deeming the request justified, the Privacy Authority accepted the reasons of the complainant, who argued the improper and derogatory use of his personal data on the website in question, and clarified that the search engine had not considered the multiple violations of privacy regulations committed by the authors of the site, including the lack of information and the references of the data controllers, which still make it impossible to exercise the rights of opposition and rectification provided for in Article 12 of the Regulation.

The Authority finally reminded that, in evaluating de-indexing requests, it is necessary to take into account, in particular, in addition to the passage of time, the criterion related to the accuracy of the data, emphasizing the need to pay particular attention to those pieces of information that create "an inaccurate, inadequate, or misleading impression regarding the interested party," as recommended by the EDPB Guidelines on the right to be forgotten from 2014.

THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO WANT TO KNOW MORE

The most important interventions and measures recently adopted by the Authority

Violence in Palermo, new warning from the Privacy Authority. It is prohibited to disclose the identity of the victim. An investigation has been opened into the websites that published the name of the girl – Press Release of August 29, 2023

Violence in Palermo, the Authority warns about sharing the video. Warning to Telegram and users: protect the dignity of the victim. Consequences also of a criminal nature – Press Release of August 23, 2023

Incident at the villa party in Turin: the Authority opens an investigation to ascertain any responsibilities in the dissemination of personal data – Press Release of August 14, 2023

NEWSLETTER of the Authority for the protection of personal data (Registered at the Court of Rome No. 654 of November 28, 2002).

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